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Case Number: 25NNCV00322 Hearing Date: July 29, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFFS' MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA FOR PERSONAL APPEARANCE OF NONPARTY HERTZ GLOBAL HOLDINGS, INC.'S PERSON MOST QUALIFIED and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

This action arises out of a motor vehicle collision that occurred on August 31, 2024, near the intersection of Vineland Avenue and Victory Boulevard in North Hollywood. Plaintiffs Patria Diaz and her minor son, Cedric Valdez ("Plaintiffs"), allege they suffered severe injuries when Defendant Daryoush Mehrabani, while driving for Uber, crossed into oncoming traffic and caused a head-on collision. Plaintiffs filed this action on January 16, 2025, asserting claims against Mehrabani, Uber Technologies, Inc., Rasier, LLC, and Rasier-CA, LLC.

On June 29, 2026, Plaintiffs filed the instant motion to compel compliance with a deposition subpoena seeking the appearance of nonparty Hertz Global Holdings, Inc.'s Person Most Qualified for deposition and requesting monetary sanctions. No opposition has been filed.

II. LEGAL STANDARD

CCP § 2020.010 permits discovery of non-party witnesses through oral and written depositions. (See CCP § 2020.010(a)(1), (2); *Hawkins v. TACA International Airlines, S.A.* (2014) 223 Cal.App.4th 466, 476.) A deposition subpoena may command the attendance and testimony of the deponent, the production of business records, or both. (CCP § 2020.020.) Additional requirements regarding notification and a right to object are in place where the records sought are consumer records, including personal medical records. (See CCP § 1985.3.)

California Code of Civil Procedure section 1987.1, subdivision (a) states, "[i]f a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

"[U]pon motion reasonably made by the party, judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas." (*Lee v. Swansboro Country Property Owners Ass'n* (2007) 151 Cal.App.4th 575, 582-583.)

Where discovery implicates privacy rights, the court must balance the competing interests by determining whether the information sought is directly relevant to the litigation and whether the need for discovery outweighs the privacy interests at stake. (Britt v. Superior Court (1978) 20 Cal.3d 844; Allen v. Superior Court (1984) 151 Cal.App.3d 447; Harris v. Superior Court (1992) 3 Cal.App.4th 661.)

III. ANALYSIS

Plaintiffs move for an order compelling nonparty Hertz Global Holdings, Inc. to designate and produce its Person Most Qualified for deposition. Plaintiffs contend Hertz was properly served with a deposition subpoena, that the requested testimony concerns matters directly relevant to the claims and defenses in this action, and that despite good-faith meet-and-confer efforts, Hertz refused to produce a PMQ for deposition. (Motion, pp. 3-10.)

The Court agrees.

A deposition subpoena is the means by which a party obtains discovery from a nonparty. (Code Civ. Proc., §§ 2020.010, 2020.020.) Where the deponent is an entity, it must designate and produce one or more persons most qualified to testify on the matters described in the subpoena. (Code Civ. Proc., §§ 2020.310, subd. (e), 2025.230.) If a nonparty fails to appear after being properly served with a deposition subpoena, the noticing party may move for an order compelling the deponent's attendance and testimony. (Code Civ. Proc., §§ 1987.1, 2025.450.)

Here, Plaintiffs have demonstrated that Hertz was properly served with the deposition subpoena, that the requested testimony is relevant to the subject matter of this litigation, and that Hertz failed to produce a PMQ or otherwise comply with the subpoena. Plaintiffs further establish that they attempted to resolve the dispute informally by offering alternative deposition dates, but those efforts were unsuccessful. (Motion, pp. 3-10; Avanes Decl. ¶¶ 9.)

No opposition has been filed, no motion to quash and nothing before the Court demonstrates that the subpoena was improper or that Hertz has any valid basis for refusing to comply. Thus, the Court finds that Plaintiffs have established good cause for the requested relief.

Therefore, Plaintiffs' motion to compel the deposition of nonparty Hertz Global Holdings, Inc.'s Person Most Qualified is GRANTED.

Sanctions

Plaintiffs request monetary sanctions in the amount of \$3,000.00, representing six hours of attorney time at counsel's hourly rate of \$500.00. (Motion, p. 11; Avanes Decl., ¶ 12.)

CCP § 1987.2 states: "[T]he court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification . . ."

The Court finds an award of monetary sanctions is appropriate. However, the Court finds the requested six hours excessive for a routine, unopposed motion to compel compliance with a deposition subpoena. The Court finds that 1.5 hours is a reasonable amount of time to prepare the motion and appear at the hearing. At counsel's hourly rate of \$500.00, the Court awards \$750.00 in monetary sanctions.

The Court awards monetary sanctions in the amount of \$750.00 against nonparty Hertz Global Holdings, Inc. and its counsel, jointly and severally, payable to Plaintiffs within 30 days of notice of this order.

IV. CONCLUSION AND ORDER

The Court GRANTS Plaintiffs motion to compel compliance with the deposition subpoena. Nonparty Hertz Global Holdings, Inc. shall designate and produce its Person Most Qualified for deposition within 30 days of notice of this order. The Court further GRANTS monetary sanctions in the amount of \$750, payable by nonparty Hertz Global Holdings, Inc. and its counsel, jointly and severally.

Plaintiffs are to give notice.

Dated: July 29, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT

[TENTATIVE] ORDER DENYING PLAINTIFFS' MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

I. INTRODUCTION

This action arises out of a motor vehicle collision that occurred on August 31, 2024, near the intersection of Vineland Avenue and Victory Boulevard in North Hollywood. Plaintiffs Patria Diaz and her minor son, Cedric Valdez ("Plaintiffs"), allege they suffered severe injuries when Defendant Daryoush Mehrabani, while driving for Uber, crossed into oncoming traffic and caused a head-on collision. Plaintiffs filed this action on January 16, 2025, asserting claims against Mehrabani, Uber Technologies, Inc., Rasier, LLC, and Rasier-CA, LLC.

On May 21, 2026, Plaintiffs filed the instant motion for leave to file a First Amended Complaint. On June 8, 2026, Defendants Uber Technologies, Inc., Rasier, LLC, and Rasier-CA, LLC (collectively, "Uber") filed an opposition. Plaintiffs filed a reply on June 10, 2026.

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a) provides: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1); see Code Civ. Proc., § 576.)

Permissible amendments pursuant to Code of Civil Procedure section 473, subdivision (a) include amendments which add causes of action. A plaintiff that fails to plead a cause of action arising out of the transaction or occurrence that gave rise to the complaint may apply to the court for leave to amend the complaint to assert the cause of action, whether that failure was the result of oversight, inadvertence, mistake, neglect, or other cause. (Code Civ. Proc., § 426.50; see Code Civ. Proc., § 426.10, subd. (c).) The motion to amend may be filed at any time during the course of the action, on notice to the adverse party. (Id., § 426.50.)

The court has broad discretion to permit amendments to pleadings, and “the court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Ibid.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend . . .” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading. (Cal. Rules of Court, Rule 3.1324, subd. (a)(1).) A motion to amend a pleading must also be supported by a declaration which specifies the following: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324, subd. (b).)

III. ANALYSIS

Plaintiffs seek leave to file a First Amended Complaint to add causes of action for negligent hiring, retention, training, and supervision, and negligent undertaking against the Uber Defendants.

Code of Civil Procedure sections 473, subdivision (a)(1), and 576 grant courts discretion to permit amendment of pleadings in furtherance of justice. California courts generally apply a policy of great liberality in allowing amendments. However, a party seeking leave to amend must comply with the procedural requirements set forth in California Rules of Court, rule 3.1324.

Rule 3.1324 requires that a motion to amend be accompanied by a declaration specifying: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

Here, Plaintiffs substantially address the first three requirements. Counsel declares that the proposed amendment seeks to add causes of action for negligent hiring, retention, training, and supervision, and negligent undertaking against the Uber Defendants. (Avaness Decl., ¶ 4.) Counsel further states that the proposed claims are based on information obtained during the depositions of Defendant Mehrabani and Uber’s person most knowledgeable, which allegedly revealed Uber’s involvement in driver approval, training, monitoring, and supervision. (Avaness Decl., ¶¶ 2-3.)

However, Plaintiffs fail to satisfy rule 3.1324(b)(4). Counsel declares that the relevant facts were discovered during the July 30, 2025, deposition of Defendant Mehrabani and the November 13, 2025, deposition of Uber’s person most knowledgeable. (Avaness Decl., ¶ 3.) Nevertheless, Plaintiffs did not file the instant motion until May 21, 2026.

In opposition, Uber argues Plaintiffs unreasonably delayed seeking leave to amend after discovering the facts upon which the proposed amendment is based. The Court agrees that the record reflects a substantial lapse of time between the discovery of the allegedly new facts and the filing of the instant motion. More importantly, however, neither the declaration nor the motion explains why leave to amend was not sought earlier, what circumstances justified the delay, or why the motion could not have been brought within a reasonable time after discovery of the facts supporting the proposed amendment.

Because Plaintiffs have failed to comply with California Rules of Court, rule 3.1324(b)(4), by not providing an explanation for why the request for amendment was not made earlier, the Court DENIES Plaintiff’s motion for leave to amend.

IV. CONCLUSION AND ORDER

The Court DENIES Plaintiffs motion for leave to amend.

Plaintiffs are to give notice.

Dated: July 29, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT